

Amendment No. 4 to HB0571

Behn
Signature of Sponsor

AMEND Senate Bill No. 468*

House Bill No. 571

by deleting Section 68-107-103 in the amendatory language of SECTION 1 and substituting:

68-107-103. Findings.

The legislature finds and declares that:

- (1) Sex and gender are distinct concepts recognized by science, medicine, and law, and both may be fluid and diverse;
- (2) Transgender, nonbinary, and intersex individuals are entitled to full participation in society, free from discrimination and harm;
- (3) The Fourteenth Amendment to the United States Constitution guarantees equal protection of the laws, and policies singling out gender-diverse individuals for exclusion or discrimination are constitutionally suspect;
- (4) Creating safe, inclusive environments in state facilities enhances safety and reduces violence; and
- (5) This state has a compelling interest in preventing discrimination and affirming the dignity and safety of all persons, including LGBTQ+ individuals in this state.